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Scheme of Valuation/Answer Key (Scheme of evaluation (marks in brackets) and answers of problems/key)		
APJ ABDUL KALAM TECHNOLOGICAL UNIVERSITY B.Tech Degree S4 (R, S) / S4 (PT) (R, S) / S2 (PT) (R, S) Examination June 2023 (2019 Scheme)		
Course Code: MCN202		
Course Name: CONSTITUTION OF INDIA		
Max. Marks: 100		Duration: 3 Hours
PART A		
	<i>(Answer all questions; each question carries 3 marks)</i>	Marks
1	Definition of Constitution	3
2	Preamble - preface that appears at the beginning of a document,	3
3	Right to equality Article 14: Equality before the Law Article 15: Prohibition of Discrimination Article 16: Equality of Opportunity in Public Employment Article 17: Abolition of Untouchability Article 18: Abolition of Titles	3
4	Definition- state refers to a political entity that possesses sovereignty and is recognized as organized government, a defined territory, a permanent population, and the capacity to enter into relations with other states.	3
5	Functions of vice president Vice President often serves as the presiding officer of the upper house (Rajya Sabha). Immediate successor to the President Advisor to the President on matters of policy, legislation, and governance. Representing the President in his absence Advocacy and Public Engagement Presiding Over Executive Councils	3
6	Composition of Rajya Sabha Total Number of Members: 250 members, 238 members are elected by the legislatures of the states and union territories, while the President of India can nominate 12 members with special knowledge or practical experience in literature, art, science, or social service. Term of Office: Members of the Rajya Sabha serve a term of six years. One-third of the members retire every two years, ensuring continuity in the functioning of the house. Quorum: For a valid session of the Rajya Sabha, one-tenth of the total membership must be present, including the presiding officer (the Vice President of India)	3
7	Eligibility Criteria Age: at least 25 years of age Citizenship: The candidate must be a citizen of the country. Membership of Legislative Assembly: Majority Support: the leader of the political party	3
8	minister appointed in State council Election as a Member: state legislative assembly (MLA) Formation of Government Selection of Ministers Appointment by the Governor Allocation of Portfolios	3
9	Procedure for amendment of Constitution Initiation: An amendment to the Constitution can be initiated either by a member of Parliament (MP) or by the government in either the Lok Sabha (House of the People) or the Rajya Sabha	3

		(Council of States), Passage in Both Houses: Special Majority: bill must be passed by a majority of the total membership of each house and by a two-thirds majority of the members present and voting. Presidential Assent: The President's assent is a formal approval of the amendment. Extent of Amendment: The President may give assent to the amendment Ratification by States Publication in the official Gazette of India.	
10		Functions of UPSC Conducting Civil Services Examinations: IAS,IPS,IFS Conducting Other Central Recruitment Examinations: to various central government services Setting Examination Standards: The UPSC determines the syllabus, eligibility criteria, and format of examinations Conducting Interviews: Maintaining a Merit-Based System: Advisory Role: The UPSC may advise the President of India on matters related to the recruitment	3
PART B			
<i>(Answer one full question from each module, each question carries 14 marks)</i>			
Module -1			
11	a)	Salient features of Indian Constitution Lengthy and Detailed Preamble Federal Structure with Unitary Bias Parliamentary Democracy Fundamental Rights Directive Principles of State Policy Secularism Universal Adult Franchise Single Citizenship Independent Judiciary Emergency Provisions Reservation Policies Amendment Procedure	7
	b)	preamble of Indian Constitution Sovereign Socialist Secular Democratic Republic,	7
12	a)	Citizenship-methods Birth Descent Registration Naturalization Citizenship by Incorporation of Territory Overseas Citizens of India (OCI) Citizenship by Birth on Ships and Aircraft Any Other Method (as prescribed by the government)	8
	b)	Distribute the mark to 12a if 12b is attended	6
Module -2			

13	a)	Features – 5 marks, any two – 2 marks each Right to Equality	9
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		Right to Freedom Right against Exploitation Right to Freedom of Religion Cultural and Educational Rights Right to Constitutional Remedies	
	b)	Gandhian ideology in directive principle Promotion of cottage industries (Article 43) Prohibition of cow slaughter and improvement of animal husbandry (Article 48) Promotion of education and economic interests of Scheduled Castes, Scheduled Tribes, and other weaker sections (Article 46 and 46A) Organization of village panchayats (Article 40) Protection of environment and safeguarding of forests and wildlife (Article 48A)	5
14	a)	Fundamental duties Abide by the Constitution and its ideals. Uphold India's sovereignty, unity, and integrity. Defend the nation and serve when called upon. Promote harmony and brotherhood among all. Respect women's dignity and denounce derogatory practices. Value and preserve India's rich cultural heritage. Safeguard public property and reject violence.	8
	b)	Features Non-Justiciable Socio-Economic Objectives Welfare of the People Welfare State Balance with Fundamental Rights Broad and Flexible Interpretation by Courts Economic and Social Democracy	6

Module -3

15	a)	Election procedure – 5 marks, Removal – 3 marks <u>Election of the President:</u> Elected by an Electoral College comprising members of Parliament and State Legislative Assemblies. Candidate must be an Indian citizen, at least 35 years old, and eligible to be a Lok Sabha member. Conducted by the Election Commission using a single transferable vote system. Winner needs a majority of total valid votes. <u>Removal of the President:</u> Removal through impeachment process under Article 61. Motion for removal introduced in either House of Parliament, signed by at least one-fourth of total members. Motion sent to other House for consideration. Resolution passed by special majority in both Houses. If passed, President is considered impeached and removed from office.	8
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	b)	Any three – 2 marks each Legislative Function: Enacting laws, amending existing laws Financial Function: Approving the budget, government expenditure, and policies. Control Over Executive: Questioning, debating, and approving government policies and actions. Constitutional Amendment: Amending the Constitution with a special majority. Electoral Functions: Electing the President and Vice President of India. Judicial Functions: Serving as a court of impeachment for the President's removal. Advisory Function: Discussing national and international issues, providing suggestions. Emergency Powers: Declaring and extending national, state, or financial emergencies.	6	
16	a)	Prime minister Head of the Government: Leads the government and exercises executive authority. Cabinet Leadership: Heads the Council of Ministers and assigns ministerial portfolios. Legislative Role: Guides government bills and policies through Parliament. Advisor to the President: Provides advice on important matters. Coordination: Coordinates various government departments and agencies. Alliance Building: Forms political coalitions and ensures legislative support.	9	
	b)	Explain appeal by special leave discretionary power of the Supreme Court of India to grant special permission to appeal against a decision of a lower court or tribunal. Certain Cases	5	
Module -4				
17	a)	Qualification – 5 marks, disqualification – 5 marks Qualifications: Citizenship of India. Minimum age (varies by state, generally around 25 years). Voter registration in the state. Mental soundness. Disqualifications: Holding an office of profit under the state government. Undischarged insolvency. Declared of unsound mind by a competent court. Conviction for certain offenses, including corruption and heinous crimes. Imprisonment for two or more years (disqualification for six years from release). Holding an office of profit under the central or any other state government Non-citizenship of India. Voluntarily giving up membership of a political party. Defection – disobeying party whip or voluntarily giving up party membership.	10	
	b)	<u>Duties – 2 marks</u> Legal Advisor to State Government. Representing State Government in Courts. Defending State Interests. Providing Legal Opinions. Assisting Legislative Process. Appearing in Courts. Representing Public Interest. Special Litigations.	<u>Functions: 2 marks</u> Litigation Management. Legal Research. Court Appearances. Legal Drafting. Coordination. Protection of State's Rights. Public Interest Advocacy. Legal Advice.	4
18	a)	List – 4 mark original jurisdiction -3 mark, writ jurisdiction – 3 mark Original Jurisdiction: High Courts can hear certain cases directly without them being heard in	10	

		lower courts first. These cases often involve constitutional issues, disputes between states and the central government, etc. <u>writ jurisdiction</u> – Habeas Corpus Mandamus Certiorari Prohibition Quo Warranto	
	b)	Any 4 points – 4 marks Executive Powers Legislative Powers Financial Powers Veto Powers Discretionary Powers Emergency Powers:	4
Module -5			
19	a)	5 points – 2 mark each National Interest: If the Rajya Sabha passes a resolution by a two-thirds majority declaring it necessary for national interest. Financial Stability Threat: If the President receives a report of a threat to India's financial stability or credit, Parliament can intervene. Request by States: If two or more states request legislation on a State List matter and Parliament deems it necessary. Implementation of International Agreements: When a treaty or agreement with a foreign country requires legislation on a State List matter. National Emergency: During the proclamation of a National Emergency, Parliament can legislate on State List matters as if in the Concurrent List.	10
	b)	Any 4 points – 1 mark each Central Assistance for State Plans. Support for Centrally Sponsored Schemes (CSS). Special Category States. Revenue Deficit Grants. Disaster Relief. Support to Local Bodies. Social Welfare and Poverty Alleviation. Infrastructure Development	4
20	a)	Emergency – 1 mark + 3 marks each for explaining National Emergency (Article 352): State Emergency (President's Rule) (Article 356): Financial Emergency (Article 360):	10
	b)	Any 4 Functions – 4 mark Dispute Resolution Recommendations on Policy Matters Deliberations on President's Recommendations Advising on Center-State Relations Reviewing Work of Commissions and Committees	4
